

(*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) “The granting of leave to amend after a demurrer is sustained on one ground does not give the plaintiff a license to add any possible cause of action that might not be subject to dismissal on that ground. Otherwise, there would be virtually no limitation on amendments following the sustaining of a demurrer.” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 [trial court granting leave to add quantum meruit did not allow plaintiff to add promissory estoppel to avoid statute of limitations].)

Here, leave to amend is limited to the reasons stated for sustaining the demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508997	ROBLES CALVILLO VS GENERAL MOTORS, LLC	HEARING RE: MOTION FOR ATTORNEYS FEES

Tentative Ruling: Granted.

Granted in reduced, but reasonable amount of \$17,292.00 payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Juvencio Robles Calvillo brings this Song-Beverly action regarding a 2023 Chevrolet Traverse that contained various defects. The complaint, filed 11/12/25, asserts: (1) breach of implied warranty of merchantability; (2) breach of implied warranty of fitness; (3) breach of express warranty; (4) failure to promptly repurchase product; and (5) failure to commence repairs within a reasonable time and to complete them within 30 days.

Plaintiff moves for attorney fees of and costs of \$28,852.40 (\$18,655 [lodestar]; \$9,327.50 [1.5 multiplier]; \$869.90 [costs]). Plaintiff contends that he is the prevailing party. Counsel spent 28.7 hours at a rate of \$650. Plaintiff contends a multiplier is warranted.

In opposition, Defendant contends this was a routine lemon law case. It argues that \$650 is not the prevailing market rate, rather than \$450. It asserts that Plaintiff improperly billed for clerical and administrative work, and that certain tasks are excessive. It contends that there is no basis for a multiplier. It requests the court award \$10,237.50 and \$719.90 in costs and expenses.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Here, the parties settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff's counsel, he spent 28.7 hours at an hourly rate of \$650. Based on counsel's declaration and this court's review of similar matters with similar work, a more reasonable rate is \$550.00 for Riverside County.

As for the time spent, Defendant requests the following challenges:

.5 hours reviewing initial disclosures. The court finds this reasonable.

2.5 hours reviewing documents for mediation. The court finds this reasonable.

5.0 hours preparing this fee motion. The court agrees this is excessive and awards 3.0 hours.

1.25 hours preparing the complaint. The court agrees this is excessive and awards .75 hours.

Thus, the court awards a total of 26.2 hours at \$550, for a lodestar of \$14,410.00.

The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly

rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

As this is a typical lemon law case, there is no basis for a multiplier. However, the court will exercise its discretion for a multiplier of 1.2 for an efficient resolution of the matter (\$2,882.00) for a total fee award of \$17,292.00.